

Product Classification & Regulation

[PART XVII 2 [LABELLING, PACKING AND LIMIT OF ALCOHOL IN] AYURVEDIC (INCLUDING SIDDHA) OR UNANI DRUGS

161. Labelling, packing and limit of alcohol

TITLE: Labelling, Packing and Limit of Alcohol for Ayurvedic, Siddha and Unani Drugs

JURISDICTION: India

CATEGORY: Product Classification & Regulation

SOURCE CITATION: Drugs and Cosmetics Rules, 1945 – Rule 161

PLAIN ENGLISH SUMMARY:

Rule 161 specifies the mandatory labelling and packing requirements for Ayurvedic, Siddha and Unani drugs. The label must provide details such as the ingredients, botanical names and plant parts, quantity, manufacturer, manufacturing licence number, batch number, manufacturing date and type of medicine. It also contains special labelling requirements for Schedule E(1) substances, external-use medicines, free samples and certain preparations containing alcohol.

THE EXACT LEGAL TEXT:

161. Labelling, packing and limit of alcohol.—

(1) There shall be conspicuously displayed on the label of the container or package of an Ayurvedic (including Siddha) or Unani drug, the true list of all the ingredients with the botanical names of plant based ingredients along with plant part(s) and form of ingredients, in which, these are used in the manufacture of the preparation together with quantity of each of the ingredients incorporated therein and a reference to the method of preparation thereof as detailed in the standard text and Adikarana, as are prescribed in the authoritative books specified in the First Schedule to the Act and in respect of Patent or Proprietary Ayurveda, Siddha or Unani drugs, the true list of all ingredients with the botanical names of plant based ingredients along with part(s) and form of ingredients, in which, these are used in the formulation, with their quantity:

Provided that if the list of ingredients contained in the medicine is large and cannot be accommodated on the label, the same may be printed separately and enclosed with packing and reference be made to this effect on the label.

(2) The container of a medicine for internal use made up ready for the treatment of human ailments shall, if it is made up from a substance specified in Schedule E (1), be labelled

conspicuously with the words 'Caution: To be taken under medical supervision' both in English and Hindi language.

(3) Subject to the other provisions of these rules, the following particulars shall be either printed or written in indelible ink and shall appear in a conspicuous manner on the label of the innermost container of any Ayurvedic (including Siddha) or Unani drug, Patent or Proprietary Ayurveda, Siddha or Unani drugs and on any other covering in which the container is packed, namely—

(i) The name of the drug. For Ayurveda, Siddha or Unani drugs this purpose the name shall be the same as mentioned in the authoritative books included in the First Schedule of the Act.

(ii) A correct statement of the net content in terms of weight, measure or number as the case may be. The weight and volume shall be expressed in metric system.

(iii) The name and address of the manufacturer.

(iv) The number of the licence under which the drug is manufactured, the figure representing the manufacturing licence number being preceded by the words 'Manufacturing Licence Number' or 'Mfg. Lic. No.' or 'M.L.'.

(v) A distinctive batch number, that is to say, the number by reference to which details of manufacture of the particular batch from which the substance in the container is taken are recorded and are available for inspection, the figure representing the batch number being preceded by the words "Batch No." or "Batch" or "Lot Number" or "Lot No." or "Lot" or any distinguishing prefix.

(vi) The date of manufacture. For this purpose the date of manufacture shall be the date of completion of the final products, or the date of bottling or packing for issue.

(vii) The words "Ayurvedic medicine" or "Siddha medicine" or "Unani medicine" as the case may be.

(viii) The words "FOR EXTERNAL USE ONLY" if the medicine is for external application.

(ix) Every drug intended for distribution to the medical profession, as a free sample shall, while complying with the labelling provisions under clauses (i) to (viii), further bear on the label of the container the words "Physicians sample. Not to be sold" which shall be over-printed.

(x)(a) Preparation (Asavas) with high content of alcohol as base:

Name of the drug — Maximum size of packing

(i) Karpur Asava — 15 ml

(ii) Ahiphenasava — 15 ml

(iii) Margamadasava — 15 ml

(x)(b) Preparations containing self-generated alcohol:

Name of the drug — Maximum content of alcohol (Ethyl alcohol v/v) — Maximum size of packing

(i) Mritsanjivani Sura — 16 per cent — 30 ml

(ii) Mahadrakshasava — 16 per cent — 120 ml

(4) Nothing in these rules shall be deemed to require the labelling of any transparent cover or of any wrapper case or other covering used solely for the purpose of packing, transport or delivery.

KEYWORDS/TRIGGERS:

Rule 161, Ayurvedic drug labelling, ASU medicine labelling, Patent Proprietary medicine, ingredient labelling, botanical names, manufacturing licence, batch number, shelf labelling, alcohol limit

161A. Exemption in labeling and packing, provisions for export of Ayurvedic (including Siddha) and Unani drugs

TITLE: Exemption in Labelling and Packing – Provisions for Export of Ayurvedic, Siddha and Unani Drugs

JURISDICTION: India

CATEGORY: Product Classification & Regulation

SOURCE CITATION: Drugs and Cosmetics Rules, 1945 – Rule 161A

PLAIN ENGLISH SUMMARY:

Rule 161A provides specific labelling and packing provisions for Ayurvedic, Siddha and Unani drugs intended for export. Export labels may be adapted to meet the legal requirements of the importing country, but certain basic details such as the drug name, manufacturer and licence details, batch or lot number, manufacturing date, best-before date and required ingredients must still be provided. It also provides limited exemptions from Rule 161 for certain medicines supplied on the prescription of a registered medical practitioner.

THE EXACT LEGAL TEXT:

161A. Exemption in labeling and packing, provisions for export of Ayurvedic (including Siddha) and Unani drugs.—

(1) Labels and packages or containers of Ayurvedic, Siddha and Unani drugs for export may be adopted to meet the specific requirements of the law of the country to which the said drug is to be exported, but the following particulars shall appear in conspicuous position on the container in which drug is packed and on every other covering in which that container is packed, namely:

- (a) Name of the Ayurvedic, Siddha and Unani drug (Single or compound formulations);
- (b) the name, address of the manufacturer and the number of licence under which the drug has been manufactured;
- (c) batch or lot number;
- (d) date of manufacture, along with the date for “Best for use before”;
- (e) main ingredients, if required by the importing country;
- (f) for export:

Provided that where Ayurvedic, Siddha and Unani Single or compound drug not classified under the First Schedule or Schedule E-(I), is required by the consignee to be not labeled with the name and address of the manufacturer, the labels on packages or containers shall bear a code number as approved by the Licensing Authority mentioned in rule 152.

(2) The provisions of Rule 161 shall not apply to a medicine made up “ready for treatment”, whether after, or without, alteration, which is supplied on the prescription of a registered medical practitioner if the medicine is labeled with the following particulars, namely:—

- (a) the name and address of the suppliers;
- (b) the words “For External Use Only”, if the medicine is for external application.

KEYWORDS/TRIGGERS:

Rule 161A, Ayurvedic drug export, ASU export labelling, export packaging, Ayurvedic medicine export, Siddha drug export, Unani drug export, importing country requirements

161B:expiry date + shelf-life regulate

TITLE: Shelf-Life and Expiry Date of Ayurvedic, Siddha and Unani Medicines

JURISDICTION: India

CATEGORY: Product Classification & Regulation

SOURCE CITATION: Drugs and Cosmetics Rules, 1945 – Rule 161B

PLAIN ENGLISH SUMMARY:

Rule 161B requires the expiry date of Ayurvedic, Siddha and Unani medicines to be clearly displayed on the label, and medicines cannot remain in circulation after their expiry date. It specifies the permitted shelf-life for different groups of Ayurvedic, Siddha and Unani medicines, including Churna, Gutika, Avaleha, Guggulu, Asava-Arista, Bhasma, Capsules, Syrups and other dosage forms.

THE EXACT LEGAL TEXT:

161B. (1) The date of expiry of Ayurveda, Siddha and Unani medicines shall be conspicuously displayed on the label of container or package of an Ayurvedic, Siddha and Unani medicines, and after the said date of expiry, these medicines shall not be in circulation.

(2) The Shelf-life i.e. for Ayurveda, Siddha and Unani medicines shall be as follows:-

(i) Shelf life or date of expiry for Ayurvedic medicines.

Sl. No. | Name of the Group of Ayurvedic Medicine | Shelf life and date of expiry with effect from the date of manufacture

1. Churna, Kwatha Churna — 2 years

2. Gutika (Vati-Gutti, Pills, Tablets except Gutika with Rasa) — 3 years

3. (i) Gutika Tablet containing Ksth aushadhi — 3 years

(ii) Gutika, Tablet containing Ksth aushadhi and Rasa, Uprasa, Metallic Bhasmas, and Guggulu — 5 years

4. Rasaushadhies — No expiry date

5. Asava Arista — No expiry date

6. Avaleha — 3 years

7. Guggulu — 5 years

8. Mandura-Lauha — 10 years
9. Ghrita — 2 years
10. Taila — 3 years
11. Arka — 1 year
12. Dravaka, Lavana, Ksara — 5 years
13. Lepa Churna — 3 years
14. Dant Manjan Powder — 2 years
15. Dant Manjan Paste — 2 years
16. Lepa Guti — 3 years
17. Lepa Malahar (Ointment)/Liniment/Gels/lotions/creams — 3 years
18. Varti — 2 years (one time use)
19. Ghana Vati — 3 years
20. Kupipakva Rasayan — No expiry date
21. Parpati — No expiry date
22. Sveta parpati — 2 years
23. Pisti and Bhasma — No expiry date
24. Svarna, Rajata, Lauha, Mandura, Abhraka Bhasma, Godanti, Shankha Bhasma, etc. — No expiry date
25. Naga Bhasma, Vanga Bhasma, Tamra Bhasma — 5 years
26. Capsules made of soft gelatin (depending upon the content material) for Kashtha aushadhi — 3 years
27. Capsules of hard gelatin (depending upon the content material) containing Kashtha aushadhi with Rasa, Bhasma, Parad-Gandhak — 5 years

28. Syrup/liquid oral — 3 years

29. (Kama/Nasa Bindu) Ear/Nasal drops — 2 years
Eye drops — 1 year

30. Khand/Granule/Pak — 3 years

31. Dhoopans-Inhalers — 2 years

32. Pravahi Kwatha (with preservatives) — 3 years

Note 1. Item at Sr. No. 4, 5, 19, 20, 22, 23 have very long shelf life and they became more efficacious with the passage of time and period of ten years shall be mandatory for keeping the records of such items.

Note 2. Bhasmas at Sr. No. 23, start solidifying after five years and they need one or two 'Putra' again before using in the dosage form.

(ii) Shelf life or date of expiry for Siddha Medicines

1. Karpam — No expiry date*
2. Cunnam — 5 years
3. Kalanku — No expiry date*
4. Kattu — No expiry date*
5. Parpam — No expiry date*
6. Centuram — No expiry date*
7. Karuppu — No expiry date*
8. Patankam — 5 years
9. Kulampu — 5 years
10. Meluku — 5 years
11. Tinir — 2 years
12. Tiravakam — 2 years
13. Mattirai — 3 years
14. Tailam — 3 years
15. Ilakam — 3 years
16. Iracayanaam — 3 years
17. Ney — 2 years
18. Manappaku — 3 years
19. Venney — 3 years
20. Vatakam — 3 years
21. Curanam — 2 years
22. Pura Maruntukal — 5 years

Note. * Items at Sr. No.1, 3, 4, 5, 6, 22 have very long shelf life and they became more efficacious with the passage of time and period of ten years shall be mandatory for keeping the records of such items.

(iii) Shelf life or date of expiry for Unani System of Medicines

1. Habb (Pills) — 3 years
2. Qurs (Tablets) — 3 years
3. Majoon/Dawa — 3 years
4. Khamira — 3 years
5. Itrifal — 3 years
6. Tiryaq — 3 years
7. Laooq — 2 years
8. Laboob — 2 years
9. Halwa — 2 years
10. Mufarreah/Yaqooti — 2 years
11. Burood/Surma/Kohal — 3 years
12. Kushta — 5 years
13. Raughaniyat — 3 years
14. Marham/Zimad/Qairrooti — 3 years
15. Ayarij/Sufoof — 2 years
16. Safoof (Namak wala/containing salt) — 1 year
17. Sharbat/Sikanjabeen — 3 years
18. Jawarish — 3 years
19. Capsule — 3 years
20. Arq — 1 year
21. Qutoor — 1 year
22. Nabeez — 5 years
23. Murabba — 1 year
24. Tila — 2 years

KEYWORDS/TRIGGERS:

Rule 161B, Ayurvedic medicine shelf life, ASU medicine expiry, Ayurvedic expiry date, Siddha medicine shelf life, Unani medicine shelf life, Ayurvedic product expiry, medicine circulation after expiry